Galveston County District Court

Cause No. 2024-CV-0021

Megan Gutierrez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Megan Gutierrez

Date:	February 3, 2025
Location:	Offices of Dunn & Acosta LLP
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Laura Bryant, Dunn & Acosta LLP

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record, but I understand my attorney has already provided it for this matter.

Q: Understood. Let's go over the accident. Where were you on the day of the collision?

A: I was driving through an intersection in Sugar Land, Texas, heading toward my job site. It was a regular commute.

Q: Which direction were you traveling, and what was the traffic signal showing for you?

A: I was going straight through the intersection. My light was green when I entered it.

Q: What happened next?

A: A vehicle coming from my right side ran through the cross street and struck the passenger side of my car. I didn't see it until it was almost on me. I braced myself on the steering wheel and the impact pushed my car sideways.

Q: Did you lose consciousness or hit your head?

A: No. I remember everything clearly. My head didn't hit anything, but my right arm was thrown against the door frame and then I felt a pull in my shoulder.

Q: When did you first notice pain in your shoulder?

A: Almost immediately. At the scene I could barely lift my arm to adjust my seatbelt. By that evening it was throbbing and I couldn't sleep on that side.

Q: Did you seek medical care?

A: Yes. Paramedics checked me at the scene, and I went to an urgent care clinic later that day. They took x-rays and referred me to an orthopedic physician.

Q: What treatment have you received since then?

A: I've attended physical therapy about two or three times a week. I was also given a sling for the first few weeks and prescribed anti-inflammatory medication. I still do home exercises every morning.

Q: How has the injury affected your daily life?

A: It's made many things harder. I used to coach my nephew's soccer team, and I've had to step back from that. Lifting groceries, reaching into high cabinets, and washing my hair are difficult. I've also had trouble working at my desk for long stretches because my arm gets stiff.

Q: Have you returned to your normal work duties?

A: I've returned on a modified schedule. My employer has been accommodating, but I'm not doing the lifting and overhead tasks I used to do.

Q: Are you still experiencing pain today?

A: Yes, most days. It's worse when the weather changes or after I've been using the arm for a while.